

**BEFORE THE STATE BOARD OF BEHAVIORAL HEALTH LICENSURE
STATE OF OKLAHOMA**

**STATE OF OKLAHOMA, ex rel.,
STATE BOARD OF BEHAVIORAL
HEALTH LICENSURE,
Petitioner,**

vs.

**J FINCH,
Aka JESSICA BRANSTON,
LPC, LICENSE NO. 7804
Respondent.**

Complaint No. 2025-LPC-688



CONSENT ORDER

The State of Oklahoma, ex rel., the State Board of Behavioral Health Licensure (“the Board” or “Petitioner”) by and through its attorneys, Liz Stevens and Bailey Warren, Assistant Attorney General, and J. Finch (“Respondent”), hereby enter into this Consent Order, pursuant to 59 O.S. § 1912(A) of the Licensed Professional Counselors Act, 86:10-29-3(b)(2)(C) of the Oklahoma Administrative Code, and 75 O.S. § 309(E) of the Administrative Procedures Act. For the purposes of this Consent Order, the following facts are hereby stipulated by the parties and adopted by the Board:

STIPULATION OF FACTS

1. Petitioner is a state agency with jurisdictional authority to regulate Licensed Professional Counselors, pursuant to 59 O.S. §§ 1901, *et seq.*
2. Respondent is a Licensed Professional Counselor (“LPC”) in the State of Oklahoma, holding License Number 7804, and was licensed on or about February 12, 2021.
3. On June 2, 2025, Respondent pled Guilty to one (1) count of Medicaid Fraud in violation of 56 O.S. § 1005(A)(1) and one (1) count of Identity Theft in violation of 21 O.S. §

1533.1(B), in Oklahoma County case number CF-2024-3024.

4. Respondent received a five-year (5) deferred sentence, is prevented from billing Medicaid for the duration of sentence, and ordered to pay restitution and other costs.
5. The offer of proof for the Guilty Plea states that "Between 4-18-20 & 11-1-22 [Respondent] submitted false claims for payment to the Oklahoma Medicaid Program, total amount over \$2,500.00. [Respondent] also used the personal identification numbers of Medicaid recipients to obtain money thru the Okla. Medicaid Program, in Okla. County."
6. In order to resolve all issues raised in the Request for Inquiry filed in this matter, the parties agree to the below Agreed Conclusions of Law and Agreed Order.

AGREED CONCLUSIONS OF LAW

1. The Board has jurisdiction over this matter and Respondent pursuant to 59 O.S. § 1905(B)(4) of the Licensed Professional Counselors Act.
2. Pursuant to 59 O.S. §§ 1912(A) of the Licensed Professional Counselors Act, the Board has the authority to deny, revoke, suspend, or place on probation any license if that license holder has:
 - (2) engaged in fraud or deceit in connection with services rendered or in establishing need qualifications pursuant to the provisions of this act;
 - (4) engaged in unprofessional conduct as defined by the rules established by the Board;
 - (5) engaged in negligence or wrongful actions in the performance of his or her duties.
3. Pursuant to 59 O.S. § 1913.1(B) and OAC 86:10-29-14, the Board has the authority to impose an administrative penalty, not to exceed ten thousand dollars (\$10,000) for any related series of violations, on any person who is determined to have violated any provision of the Licensed Professional Counselors Act or any rule promulgated, or order issued pursuant hereto.

4. Respondent agrees that she did not comply with the Licensed Professional Counselors Act nor the Oklahoma Administrative Code and that her plea of Guilty to one (1) count of Medicaid Fraud in violation of 56 O.S. § 1005(A)(1) and one (1) count of Identity Theft in violation of 21 O.S. § 1533.1(B), shows that Respondent is guilty of the following violations:

- a. The Respondent engaged in fraud or deceit in connection with services rendered, unprofessional conduct as defined by the rules established by the Board, as well as negligence or wrongful actions in the performance of her duties, in violation of 59 O.S. §§ 1912(A)(2), (4), & (5).
- b. The Respondent violated OAC 86:10-3-1, which provides that LPCs shall strive to maintain the highest standards of their profession and shall not participate in, condone, or be associated with dishonesty, fraud, deceit, or misrepresentation.
- c. The Respondent violated OAC 86:10-3-4(a), which provides that it is unprofessional conduct for an LPC to plead guilty to a state or federal felony crime if the violation substantially relates to the practice of counseling and poses a reasonable threat to public safety.

AGREED ORDER

The Board and Respondent agree to the following Order:

1. Voluntarily surrender her LPC license with the ability to reapply in three (3) years.
2. Respondent understands and agrees that should any future instances be brought to the attention of the Board in which Respondent has violated the Licensed Professional Counselors Act or the Oklahoma Administrative Code, the Board reserves the right to prosecute such violations and to consider this Consent Order as a factor in the

determination of any sanctions and penalties, if any, should the Board determine that any violation has occurred.

3. Failure to comply with any of the terms of this Order may result in further disciplinary action against Respondent, including, but not limited to, the suspension or revocation of Respondent's license.

PUBLIC RECORD

Respondent acknowledges that once adopted by the Board, this Consent Order and all associated documentation becomes a matter of public record, unless otherwise excluded by law.

ACCEPTANCE BY BOARD

This Consent Order will not be submitted for Board consideration until it has been agreed to and executed by Respondent. The Consent Order shall not become effective until it has been approved by a majority of the Board and endorsed by a representative of the Board.

It is hereby agreed between the parties that this Consent Order shall be presented to the Board with a recommendation of approval from the Board at the Board Meeting scheduled for **October 3, 2025**. Respondent understands that the Board is free to accept or reject this Consent Order and, if rejected by the Board, a formal disciplinary hearing on the Complaint against Respondent may be held.

If the Consent Order is not accepted by the Board, it shall be regarded as null and void. Admissions by Respondent in the Consent Order will not be regarded as evidence against her at the subsequent disciplinary hearing. Respondent will be free to defend herself and no inferences will be made from her willingness to have entered into this agreement. It is agreed that neither the presentation of the Consent Order nor the Board's consideration of the Consent Order will be deemed to have unfairly or illegally prejudiced the Board or its individual members and therefore

will not be grounds for precluding the Board or any individual Board member from further participation in proceedings related to the matters set forth in this Consent Order.

VOLUNTARY WAIVER OF RIGHTS

Respondent is fully aware of her rights to contest the allegations pending against her. Respondent acknowledges these rights include: representation by an attorney at her own expense; the right to a public hearing on any charges or allegations filed; the right to confront and cross-examine witnesses called to testify against her; the right to present evidence on her own behalf; the right to compulsory process to secure attendance of such witnesses; the right to testify on her own behalf; the right to receive written findings of fact and conclusions of law supporting the decision on the merits of the Complaint and the right to obtain judicial review of the Board's decision. Respondent in exchange for the Board's acceptance of this Consent Order voluntarily waives all of these rights.

COMPLETE AGREEMENT

This Consent Order consists of six (6) pages and embodies the entire agreement between the Board and Respondent. It may not be altered and modified without the express consent of the parties.

Amy Barnett
AMY BARNETT, LPC CC Board Member

Dated this 3rd day of October, 2025.

IT IS SO ORDERED.
STATE BOARD OF BEHAVIORAL HEALTH LICENSURE

By:

Dr. Kelly Collins, LFC
BOARD MEMBER

Dated this 3 day of October, 2025.

I have read the entirety of this Consent Order. I understand that by its terms I waive certain rights accorded to me under Oklahoma law. I agree to this Consent Order:

J. Finch

26

Dated this ____ day of September, 2025.

J. FINCH, Respondent

CERTIFICATION OF BOARD ATTORNEY

I believe this Consent Order to be in the best interests of the State Board of Behavioral Health Licensure and the State of Oklahoma for the violations as outlined in the foregoing Consent Order.

Gley Davis

Dated this 3 day of October, 2025.

BAILEY WARREN, OBA No. 33785

LIZ STEVENS, OBA No. 34185

Assistant Attorney General

State of Oklahoma

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**ATTORNEYS FOR THE STATE OF
OKLAHOMASTATE BOARD OF
BEHAVIORAL HEALTH**